

Spending and Contracts Code, 2026

Spending authority, payments, payment cards, procurement, and the Contract Registry

Draft for adoption by Council and ratification by the Electors | September 30, 2026

Status	Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.
Works with	Financial Administration Code (Document 09), which sets the budget, the Finance and Audit Committee, reporting, and the matters that require approval of the Electors.
Protected	Amended only by Ratification Vote, except as section 24.2 permits.
Legal review	To be reviewed by legal counsel before adoption.

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SPENDING AND CONTRACTS CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

WHEREAS the funds and assets of the Fort McMurray No. 468 First Nation are held for the benefit of all its Members; and

WHEREAS no single person should be able to commit or pay out the funds of the First Nation alone, and every contract should be awarded through a process that is fair, open, and recorded; and

WHEREAS the Financial Administration Code requires every payment and Commitment of the First Nation to be authorized under this Code;

NOW THEREFORE the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:

Part 1 **Interpretation and Application**

1 Citation and Application

- 1.1 This Code may be cited as the *Spending and Contracts Code of the Fort McMurray No. 468 First Nation, 2026*.
- 1.2 This Code applies to every Commitment and payment of the First Nation. A First Nation Business Entity shall adopt procurement and signing rules that are at least as strict as Parts 3 and 4.
- 1.3 Where a funding agreement requires a procurement process stricter than this Code, the funding agreement shall be followed.

2 Definitions

- 2.1 In this Code, terms defined in the Financial Administration Code have the same meaning, and:
 - (a) "Contract Registry" means the public register kept under section 16;
 - (b) "Emergency" means a situation that threatens health, safety, or property and requires action before a meeting of Council can be held;
 - (c) "Member-Owned Business" means a business in which one or more Members hold, directly or indirectly, more than fifty percent (50%) of the ownership and control;
 - (d) "Payment Card" means a credit card, debit card, purchase card, fuel card, or store account of the First Nation;
 - (e) "Public Tender" means an open competitive process under section 11.3; and
 - (f) "Related Person" means a member of Council, an employee of the First Nation, or Immediate Family of either, and any corporation, partnership, or other entity in which any of them holds ten percent (10%) or more or a directorship.

Part 2

Spending Authority

3 Authority to Commit Funds

- 3.1 A Commitment may be made only with the authority set out in this section, and only after the Finance Officer confirms in writing that funds are available:
- (a) up to ten thousand dollars (\$10,000.00), within the Approved Budget: the Band Manager, or an employee to whom the Band Manager has delegated that authority in writing, with a stated limit;
 - (b) over ten thousand dollars (\$10,000.00) and up to one hundred thousand dollars (\$100,000.00), within the Approved Budget: the Band Manager and the Finance Officer jointly;
 - (c) over one hundred thousand dollars (\$100,000.00), within the Approved Budget: a Resolution, after review by the Committee;
 - (d) over twenty-five thousand dollars (\$25,000.00) and not within the Approved Budget: a Resolution amending the Approved Budget under the Financial Administration Code; and
 - (e) any matter listed in section 13.1 of the Financial Administration Code: a Resolution and the approval of the Electors in a Ratification Vote.
- 3.2 Commitments made under paragraphs 3.1(a) and (b) shall be reported to Council each month and entered in the Contract Registry where section 16 applies.
- 3.3 A written delegation under paragraph 3.1(a) shall be filed with the Finance Officer, and a list of delegations and their limits shall be given to the Committee each quarter.

4 No Splitting

- 4.1 No person shall divide a Commitment, or make a series of related Commitments, to avoid an authority level or a procurement threshold in this Code. Doing so is a breach of this Code.

5 Commitments Made Without Authority

- 5.1 A Commitment made, or a payment directed, without the authority this Code requires is unauthorized. No employee shall process it.
- 5.2 The Finance Officer shall report every unauthorized Commitment or payment to the Committee within five (5) business days after learning of it.
- 5.3 An unauthorized Commitment may be confirmed only by Resolution made after the Committee has reviewed it, and the Resolution and the Committee's review shall be published within fourteen (14) days.
- 5.4 A person who knowingly makes or directs an unauthorized Commitment or payment is accountable to the First Nation for any loss it causes.

Part 3

Payments and Accounts

6 Payments and Signing

- 6.1 Every payment by cheque, electronic transfer, or Payment Card account settlement shall be authorized by two (2) signing authorities, one of whom shall be the Finance Officer or a finance employee designated by the Finance Officer, and the other the Band Manager or a member of Council named by Resolution.
- 6.2 No person may authorize a payment to themselves, to their Immediate Family, or to an entity in which they or their Immediate Family hold an interest.
- 6.3 No payment shall be made for goods or services before they are received and confirmed in writing by the employee responsible, except a deposit required by the contract that does not exceed twenty-five percent (25%) of the contract price, or a payment schedule approved under section 15.
- 6.4 Any payment to a member of Council or their Immediate Family, other than remuneration and expenses under the schedule approved under the Financial Administration Code or a benefit available to Members generally on the same terms, requires a Resolution in which the member does not vote, and shall be published within fourteen (14) days.
- 6.5 Electronic signatures and approvals are permitted only through a system that records who approved each payment and when, and the record shall be kept for at least seven (7) years.

7 Emergencies

- 7.1 In an Emergency, the Band Manager may commit up to fifty thousand dollars (\$50,000.00) outside the Approved Budget, and shall report the Commitment to Council within three (3) business days, to the Committee within five (5) business days, and to Members within fourteen (14) days.
- 7.2 Any larger emergency Commitment requires a Resolution at an emergency meeting of Council under the Council Procedure By-law, and that Resolution lapses unless confirmed at the next regular Council Meeting.
- 7.3 An emergency Commitment shall be limited to what is needed to deal with the Emergency.

8 Bank and Investment Accounts

- 8.1 Bank accounts and investment accounts of the First Nation may be opened or closed only by Resolution.
- 8.2 A list of all accounts, with their signing authorities, shall be given to the auditor and the Committee each year and whenever it changes.

9 Payment Cards

- 9.1 A Payment Card may be issued only by Resolution, to an employee named in the Resolution, with a monthly limit stated in it. A monthly limit over five thousand dollars (\$5,000.00) requires the written approval of the Committee.
- 9.2 No Payment Card shall be issued to a member of Council. Travel of members of Council shall be booked and paid by Administration under the travel policy.
- 9.3 A Payment Card may be used only for purchases authorized under this Code and within the Approved Budget. No cash advance, personal purchase, or split purchase to avoid a limit is permitted, even if the amount is later repaid.
- 9.4 The cardholder shall submit an itemized receipt for each purchase within seven (7) days. The Finance Officer shall reconcile each card every month, and the Band Manager shall review and sign each reconciliation. The Band Manager's card shall be reviewed by the Finance Officer and reported to the chair of the Committee.
- 9.5 Where a Payment Card is used contrary to this section, the card shall be cancelled, the amount shall be repaid within thirty (30) days, and the matter shall be reported to the Committee.
- 9.6 A list of cardholders and their limits shall be published each year, and the total spending on each card shall be published each quarter in the quarterly report under the Financial Administration Code.

Part 4

Procurement

10 Principles

- 10.1 All procurement shall be fair, open, and transparent, and shall obtain the best value for the First Nation.

11 Procurement Thresholds

- 11.1 Purchases of ten thousand dollars (\$10,000.00) or less may be made directly, and the reason the price is reasonable shall be recorded.
- 11.2 For purchases over ten thousand dollars (\$10,000.00) and up to fifty thousand dollars (\$50,000.00), at least three (3) written quotes shall be obtained, and the lowest qualified quote shall be accepted unless a written reason is recorded.
- 11.3 For purchases over fifty thousand dollars (\$50,000.00), a Public Tender shall be held, in which:
- (a) the opportunity is posted on the website of the First Nation and at each band office for at least fourteen (14) days;
 - (b) the scoring criteria and their weights are published before bids are received;
 - (c) bids are opened at a set time in the presence of any bidder who wishes to attend, and the names of bidders and bid prices are recorded;
 - (d) bids are scored by a panel of at least three (3) persons, none of whom is a member of Council or a Related Person of any bidder, and each panel member signs a declaration of no conflict of interest; and
 - (e) the award, the scores, and the reasons are published within fourteen (14) days after the award.

12 Preference for Member-Owned Businesses

- 12.1 The scoring criteria may include a published preference, not exceeding ten percent (10%) of the total score, for Member-Owned Businesses.
- 12.2 A business claiming the preference shall file a statutory declaration of its ownership and control. A false declaration disqualifies the business from contracts with the First Nation for three (3) years.

13 Exceptions

- 13.1 A contract may be awarded without the process in section 11.2 or 11.3 only:
- (a) in an Emergency under section 7;
 - (b) where only one supplier can provide the goods or services;
 - (c) to complete work already underway under an existing contract; or
 - (d) where a funding agreement names the supplier.
- 13.2 In each case the Band Manager shall record the reason and report it to the Committee within five (5) business days, and the contract shall be shown in the Contract Registry as awarded without competition.

14 Integrity of the Process

- 14.1 No member of Council shall take part in evaluating bids or quotes, or contact a bidder about a procurement while it is open, except at a Council Meeting deciding a Commitment under paragraph 3.1(c).
- 14.2 No person involved in a procurement shall disclose bid prices or other bid information to another bidder before the award.
- 14.3 A bid from a bidder that attempts to influence a member of Council, an employee, or a panel member about the procurement shall be rejected.

15 Written Contracts

- 15.1 Every contract over ten thousand dollars (\$10,000.00) shall be in writing and shall state the scope of work, the price or the method of calculating it, the payment schedule, the start and completion dates, any holdback required by law, and the insurance and safety requirements.
- 15.2 A change to a contract that increases its price by more than ten percent (10%), or that would take the total price into a higher authority level, requires the same authority as a new Commitment for the full revised amount.
- 15.3 No contract shall be signed, extended, or renewed for a term longer than three (3) years without a Resolution.

Part 5

Contract Registry and Related Persons

16 Contract Registry

- 16.1 The Finance Officer shall keep a public Contract Registry listing every contract over ten thousand dollars (\$10,000.00), showing the supplier, the amount, the scope of work, the start and end dates, the procurement method used, the authority level under section 3.1, and whether the supplier is a Related Person.
- 16.2 The Contract Registry shall be published on the website of the First Nation and updated within twenty-one (21) days after each contract is awarded or amended.

17 Related Persons

- 17.1 No member of Council may hold a contract with the First Nation, except as permitted by the Conduct and Conflict of Interest Code.
- 17.2 A contract may be awarded to a Related Person, other than a member of Council, only through the process in section 11.2 or 11.3, with the relationship disclosed in writing in advance, every person related to the bidder excluded from every step of the decision, and the relationship shown in the Contract Registry.

Part 6

Grants, Donations, and Disposal of Assets

18 Grants and Donations

- 18.1 The First Nation may make a grant, donation, or sponsorship only under a written policy adopted by Resolution that sets the purposes, eligibility, and limits, or as a program benefit under another Document of the First Nation.
- 18.2 Every grant, donation, and sponsorship over five hundred dollars (\$500.00) shall be listed in the quarterly report, without the names of individual Members who receive assistance for personal need.
- 18.3 No grant, donation, or sponsorship shall be made to a member of Council or their Immediate Family, except under a program available to Members generally on the same terms.

19 Disposal of Assets

- 19.1 An asset of the First Nation with a value over one thousand dollars (\$1,000.00) may be sold or given away only by public notice, posted for at least fourteen (14) days, inviting offers, and shall be sold to the highest offer unless a written reason is recorded.
- 19.2 No asset shall be sold or given to a member of Council, an employee, or their Immediate Family except through the public process in section 19.1.
- 19.3 A disposal over five hundred thousand dollars (\$500,000.00) also requires the approval of the Electors under the Financial Administration Code.
- 19.4 Reserve lands and interests in reserve lands are dealt with only as the *Indian Act* permits, and are not assets for the purposes of this section.

Part 7

Election and Caretaker Periods

20 Restrictions

- 20.1 The restrictions on spending, hiring, and contracts during an election period in section 14.2 of the Election Regulations, and during a Caretaker Period in section 23.3 of the Election Regulations, apply in addition to this Code. The Finance Officer shall refuse to process any payment or Commitment that contravenes them.

Part 8

Compliance

21 Duty to Refuse and Report

- 21.1 An employee who receives a direction to make a Commitment or payment that is not authorized under this Code, or that contravenes section 20.1, shall refuse it in writing, giving the reason, and shall send a copy of the refusal to the Finance Officer and the Committee.
- 21.2 An employee who refuses or reports under section 21.1 in good faith is protected under the Whistleblower Protection Code.
- 21.3 No member of Council shall direct an employee to make a Commitment or payment. A direction given in breach of this section is a breach of the Conduct and Conflict of Interest Code.

22 Breaches and Recovery

- 22.1 A breach of this Code by a member of Council is a breach of the Conduct and Conflict of Interest Code and may be the subject of a complaint to the Integrity Commissioner.
- 22.2 A breach of this Code by an employee is grounds for discipline, up to and including dismissal, under the Administration and Personnel Code.
- 22.3 The First Nation shall take reasonable steps to recover any amount paid, or loss caused, in breach of this Code.
- 22.4 Where there are reasonable grounds to believe a breach involves theft or fraud, the Committee shall refer the matter to the police.

Part 9

Amendment and Coming into Force

23 Protected Document

23.1 This Code is a protected Document. Council may not suspend any provision of it.

24 Amendment

24.1 This Code may be amended only with the approval of the Electors in a Ratification Vote, after the proposed amendment has been published to Members for at least thirty (30) days and the Committee has reviewed it and commented in writing.

24.2 Council may amend this Code by Resolution, without a vote of the Electors, only to lower a dollar threshold, add a publication requirement, or add a control on spending, after thirty (30) days' published notice.

25 Coming into Force and Transition

25.1 This Code comes into force on the date of the Resolution adopting it, and shall be published on the website of the First Nation within seven (7) days.

25.2 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.

25.3 Contracts in force when this Code comes into force continue on their terms, but may be amended, extended, or renewed only in accordance with this Code.

25.4 Within sixty (60) days after this Code comes into force, the Finance Officer shall enter every contract over ten thousand dollars (\$10,000.00) then in force in the Contract Registry.

25.5 Within thirty (30) days after this Code comes into force, every Payment Card not issued in accordance with section 9 shall be cancelled.

25.6 Until the Finance and Audit Committee is formed, its functions under this Code shall be performed as section 29.3 of the Financial Administration Code provides.

Adopted by Council

Resolution No. and date

Signature of Chief

Signature of Councillor

Ratified by the Electors

Date of vote and votes for / against / total
Electors on the List

Signature of the Electoral Officer

Explanatory Notes

1. Purpose

This Code sets who may commit and pay out the funds of the First Nation, how contracts are awarded and recorded, and how Payment Cards, grants, and surplus assets are handled. The budget, the Finance and Audit Committee, reporting, and the matters that require approval of the Electors are in the Financial Administration Code (Document 09). These notes are not part of the Code.

2. Key provisions

- Spending authority: the Band Manager up to \$10,000, the Band Manager and Finance Officer together up to \$100,000, and a Resolution above \$100,000, all within the Approved Budget (section 3).
- Two signatures on every payment. No one may approve a payment to themselves or their family (section 6).
- Unauthorized Commitments are not processed, are reported to the Committee within five business days, and can be confirmed only after the Committee reviews them (section 5).
- No Payment Cards for members of Council. Receipts within seven days and monthly reconciliation for every card (section 9).
- Direct purchase up to \$10,000, three written quotes from \$10,000 to \$50,000, and a Public Tender over \$50,000 with published criteria, public bid opening, and a scoring panel with no members of Council (section 11).
- A preference of up to ten percent of the score for Member-Owned Businesses (section 12).
- A public Contract Registry of every contract over \$10,000, updated within 21 days (section 16).
- Employees must refuse unauthorized directions in writing and are protected when they do (section 21).

3. Legal sources and reference models

Source	Provision
Indian Act, s. 2(3)(b)	Powers of council exercised only by a majority of councillors present at a meeting duly convened
First Nations Financial Management Board, Financial Administration Law Standards	Reference model for delegation of spending authority, signing authorities, and procurement controls
Customary Election Regulations, 2026, ss. 14.2, 23.3	Spending and contract restrictions during election and caretaker periods

4. Records required before adoption

- Current signing authority Resolutions and the list of bank, investment, and Payment Card accounts.
- A list of contracts over \$10,000 in force.